Lecture 6

Ethics in the digital age

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Goals of this lecture

1. **Understand** different ethical frameworks
2. **Understand** different ethical principles
3. **Apply** frameworks and principles through ethical reflections on research projects
4. **Understand** how research ethics in the digital age is intertwined with the public and commercial domain

Literature

- **Chapter 6: “Ethics”** in Bit by bit: Social science in the digital age (2017), Matthew Salganik
- **Keymolen, E., Taylor, L. (2023)** “Data Ethics and Data Science: An Uneasy Marriage?” In: Liebregts, W., van den Heuvel, WJ., van den Born, A. (eds) Data Science for Entrepreneurship.
- **Nissenbaum, H. (2004)** Privacy as contextual integrity. Washington Law Review Association

Outline

1. Ethics and legislation
2. Ethical principles
3. Ethical frameworks
4. Challenges of the digital age

01

Ethics and legislation

QUESTION

What does “ethics” mean to you?

What comes to mind?



Traditional data collection for social science research

- Survey
- Polls
- Interviews
- Lab experiment
- Focus group
- Observational study
- Group discussion

NOTE

Research ethics for these methods is well established with many rules and guidelines. But all of them were developed with traditional data collection approaches in mind.

Digital data collection for social science research

Traditional

- Survey
- Polls
- Interviews
- Lab experiment
- Focus group
- Observational study
- Group discussion

Digital

- Web scraping
- Apps
- Sensors
- Tracking
- Plug-ins
- Data donation
- APIs
- Direct collaboration with platform
- Experimenting on platform

Guidelines built for traditional research methods do not always carry over one-on-one to digital trace data approaches

Why is this so difficult?

- Researchers (can) have more power over participants in a digital environment.
- Rules about how that power should be used are not that clear (yet).
- Regulations differ substantially over regions.

DEFINITION

Power

The ability to do things to people without their consent or awareness.

See Salganik (2017), Bit by bit, ch. 6

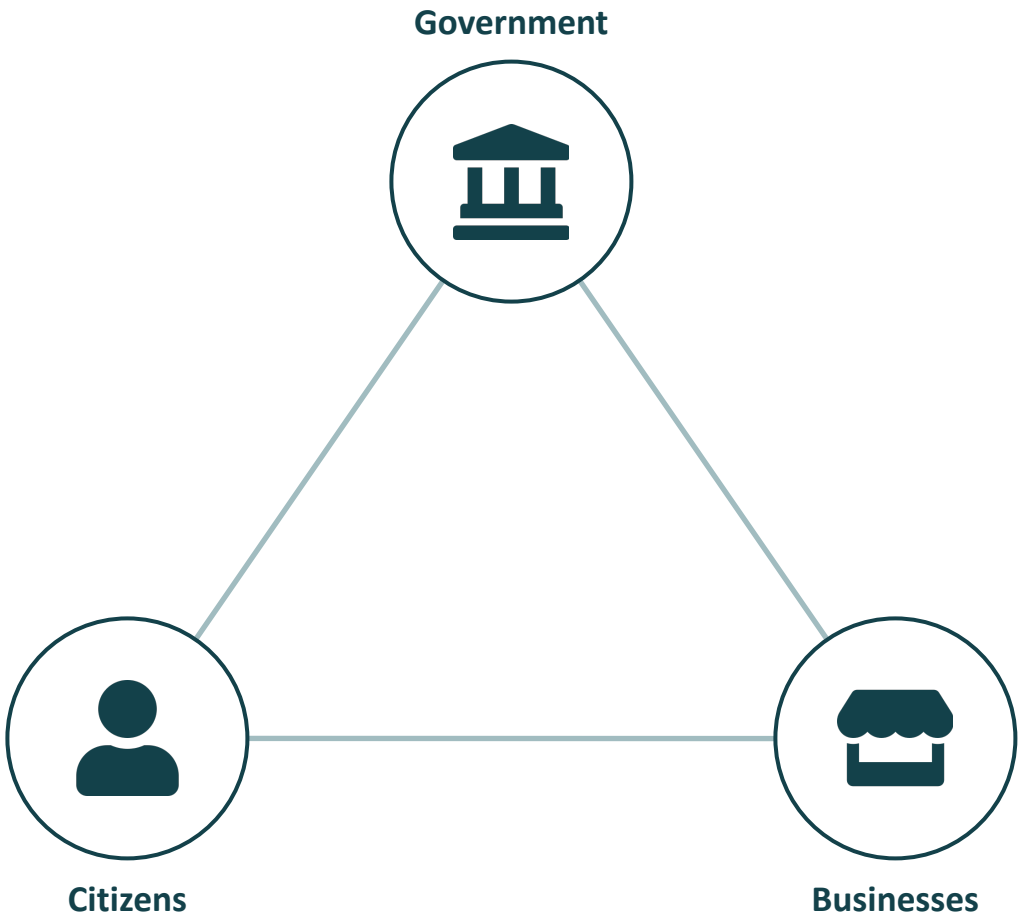
Who benefits?

For every piece of new data, ask:
who is it really designed to serve?

Citizens? *privacy, rights, autonomy*

Government? *control, security, public goals*

Businesses? *innovation, markets, profit*

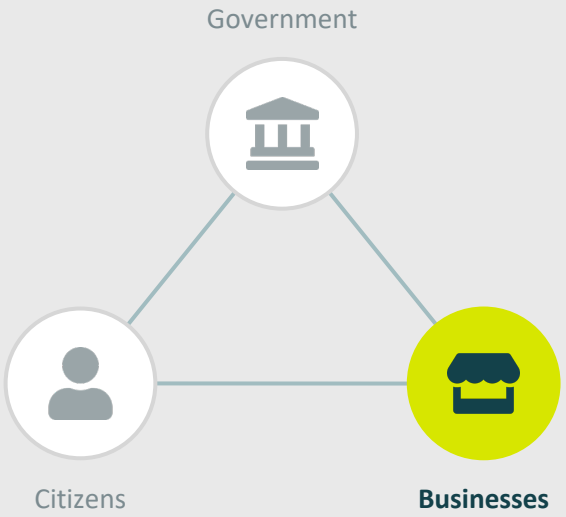


Adapted from M. Domingus, Erasmus University Rotterdam (2022), CC BY-NC · zenodo.org/records/11657150 · Further reading: Bradford, The Brussels Effect (2020) and Digital Empires (2023)

Who benefits?

MARKET-DRIVEN

United States

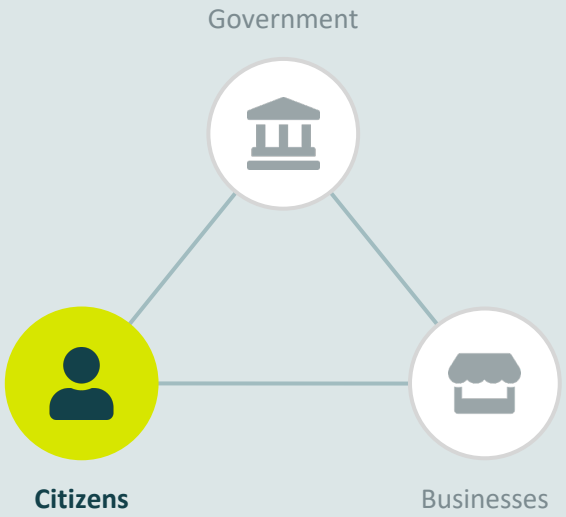


Main beneficiary: **Businesses**

No federal privacy law, but a growing patchwork of state laws (e.g. California).

RIGHTS-DRIVEN

European Union



Main beneficiary: **Citizens**

GDPR as the baseline, now extended by a wider digital rulebook.

STATE-DRIVEN

China



Main beneficiary: **Government**

Strict privacy law for companies (PIPL, 2021) broad access for the state.

Adapted from M. Domingus (2022), CC BY-NC · zenodo.org/records/11657150 · Model labels: Bradford, Digital Empires (2023)

1 GDPR — 2 DGA — 3 DSA — 4 DMA — 5 Data Act — 6 AI Act

EU data legislation

- GDPR sets the baseline for personal data protection.
- But the digital economy needs broader rules: competition, AI, non-personal data.
- Goals: digital sovereignty, fairness, innovation.

APPLIES SINCE 25 MAY 2018

General Data Protection Regulation

- Sets strict rules on how organisations collect, use and protect the personal data of individuals.
- Gives people stronger rights over their data: access, correction, deletion and consent for processing.

1 GDPR — 2 DGA — 3 DSA — 4 DMA — 5 Data Act — 6 AI Act

Beyond the GDPR: data sharing & online platforms

All adopted between 2022 and 2024, and all in application by now.

APPLIES SINCE SEPT 2023

Data Governance Act (DGA)

- Makes data sharing between businesses, citizens and public bodies safer and easier, while protecting privacy and trade secrets.
- Sets up frameworks for trustworthy data intermediaries and promotes reuse of certain public-sector data for innovation and public benefit.

APPLIES SINCE FEB 2024

Digital Services Act (DSA)

- Rules for online platforms and marketplaces: a safer digital space, protection from illegal content and harmful products.
- Transparency in algorithms and advertising, faster removal of illegal content, stronger oversight of Very Large Online Platforms (VLOPs).
- **Grants vetted researchers direct access to platform data (Art. 40).**

Researcher data access in practice (DSA Art. 40)

1

Apply

Submit a request via the DSA data access portal (open since 28 Oct 2025) to your national Digital Services Coordinator.

2

Get vetted

The coordinator checks your affiliation, independence, data security and why you need exactly this data → decision within 80 working days.

3

Access

The platform must provide the data, including non-public data, for research on systemic risks in the EU.

LESSON FROM AN EARLY REQUEST

A researchers' request for TikTok data was rejected on 5 of 7 criteria. Art. 40 is a legal procedure, not a grant application → involve your university's legal, privacy and security offices early.

€120M

DSA fine for X (Dec 2025) → partly for blocking researchers' access to public data

DSA Observatory (12 March 2026), "If at first you don't succeed"; European Commission decision on X (5 December 2025)

1 GDPR — 2 DGA — 3 DSA — 4 DMA — 5 Data Act — 6 AI Act

Beyond the GDPR: market power & connected devices

APPLIES SINCE MAY 2023

Digital Markets Act (DMA)

- Targets “gatekeepers”: companies that control core digital services like app stores, search engines or social networks.
- Imposes obligations and prohibitions: bans self-preferencing, ensures data portability, allows third-party app stores.
- Goal: fair competition and preventing abuse of market power.

APPLIES SINCE SEPT 2025

Data Act

- Users of connected devices and related services can access and share the data they generate → no exclusive control for manufacturers.
- Sets conditions for fair data sharing between businesses and with public bodies in exceptional cases, safeguarding trade secrets, privacy and cybersecurity.
- Extends the goals of the DMA to data generated by connected devices and services.

1 GDPR · 2 DGA · 3 DSA · 4 DMA · 5 Data Act · 6 AI Act

Beyond the GDPR: artificial intelligence

IN FORCE SINCE AUG 2024; PHASED

AI Act

- Risk-based framework: bans harmful AI practices, controls “high-risk” systems, sets transparency rules for others.
- Requires risk assessments, human oversight, data quality standards and clear user information.
- Aims to ensure that AI is safe, transparent and respects fundamental rights.



TIMELINE Bans since Feb 2025 · general-purpose AI rules since Aug 2025 · high-risk rules postponed by the 2026 Digital Omnibus to Dec 2027 (Annex III) and Aug 2028 (Annex I).

Next up: the Digital Omnibus

Proposed by the European Commission on 19 November 2025 to "simplify" the GDPR and related rules.

WHAT IS PROPOSED

Narrower "personal data"
Pseudonymised data would not count as personal data for a party that cannot re-identify the person.

AI training
"Legitimate interest" as a legal basis for training and running AI models.

Cookies
Cookie rules move from the ePrivacy Directive into the GDPR.

AT THE MOMENT· OCT 2026

- GDPR part still under negotiation → no Council position yet.
- Council drafts have dropped the new personal-data definition.
- EDPB and EDPS support simplification, but raise key concerns.
- The AI part was split off and adopted fast: Regulation (EU) 2026/1744.

European Parliament Legislative Train (Digital Omnibus); IAPP (23 Feb 2026); EDPB–EDPS joint opinion (2026); Privacy Next (Sept 2026)

1 GDPR
2 DGA
3 DSA
4 DMA
5 Data Act
6 AI Act

How they fit together



Complementary

They all complement the GDPR → they are not replacements.



Broader scope

Cover non-personal data, market power, AI risks and content regulation.



Shared goals

Interoperability, transparency and fairness across the digital economy.

NEXT STEPS

- Complex compliance for businesses and overlapping rules.
- Need for strong enforcement and harmonisation.
- Balance innovation with regulation.

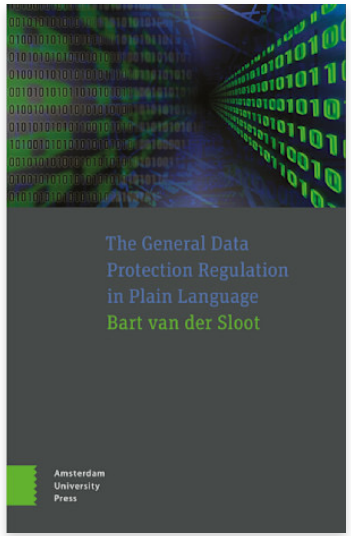
EXERCISE

The Digital Omnibus promises “simplification”. Who benefits: citizens, government or businesses?

In pairs: pick one proposed change. Who gains, who loses, and how would it affect research?

Use the triangle from earlier: citizens · government · businesses

Book recommendations



The General Data Protection Regulation in Plain Language

Bart van der Sloot · Amsterdam University Press

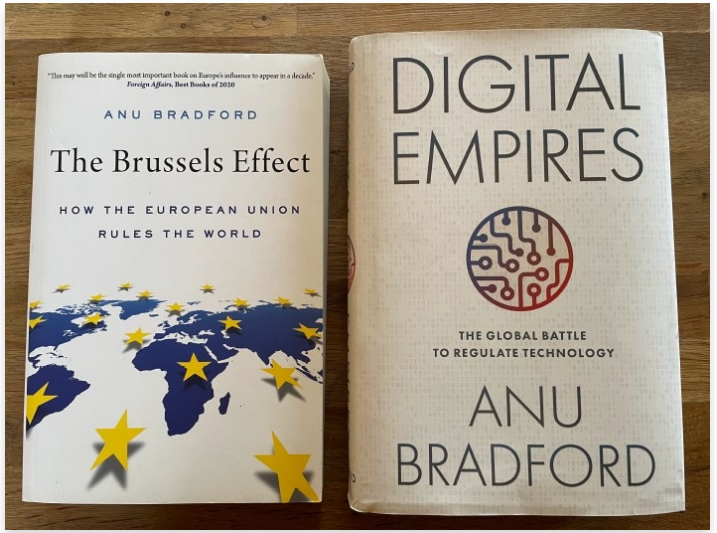
The ins and outs of the GDPR without the legal text → essential if you ever process personal data.



The Tech Coup

Marietje Schaake · Princeton University Press (2024)

How the power of big tech and the lack of US regulation shapes the world these EU laws respond to.



The Brussels Effect & Digital Empires

Anu Bradford · Oxford University Press (2020, 2023)

The source of the market-, rights- and state-driven models behind “who benefits?”.

New: EDPB guidelines on scientific research

Guidelines 1/2026 on processing personal data for scientific research draft for public consultation (April–June 2026), not yet final.



What counts as research?

Six indicative factors: methodical approach, ethical standards, verifiable results, researcher autonomy, societal benefit, advancing knowledge.



Consent

Broad consent for a defined research area is possible, with safeguards. Dynamic consent for new projects beyond that scope.



Reusing data

Further processing for research is presumed compatible with the original purpose, but inform participants and apply Art. 89 safeguards.

NEXT Complying with the law is necessary, but is it enough? Four ethical principles for when the rules run out.

EDPB Guidelines 1/2026 on the processing of personal data for scientific research (adopted for consultation 16 April 2026)

02

Ethical principles

Four principles for ethical uncertainty

Salganik (2017), building on the Belmont and Menlo reports



PRINCIPLE 1

Respect for persons

Treat people as autonomous and honour their wishes.



PRINCIPLE 2

Beneficence

Understand and improve the balance of risks and benefits.



PRINCIPLE 3

Justice

Distribute the risks and benefits of research fairly.



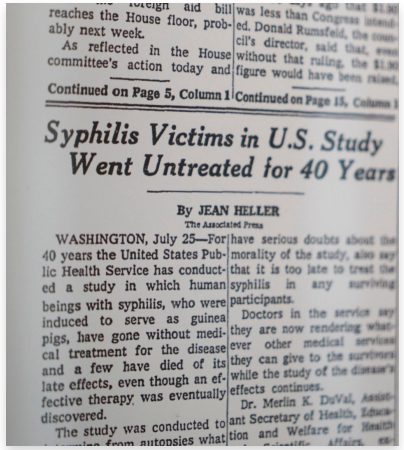
PRINCIPLE 4

Respect for law and public interest

Extend beneficence to all stakeholders: obey the law and be transparent.

Salganik, M. (2017). Bit by bit: Social research in the digital age, ch. 6

Where do these principles come from?



reaches the House floor, probably next week.
As reflected in the House committee's action today and

Continued on Page 5, Column 1

was less than Congress intended. Donald Rumsfeld, the council's director, said that, without that ruling, the $1.30 figure would have been raised.

Continued on Page 15, Column 1

Syphilis Victims in U.S. Study Went Untreated for 40 Years

By JEAN HELLER
The Associated Press

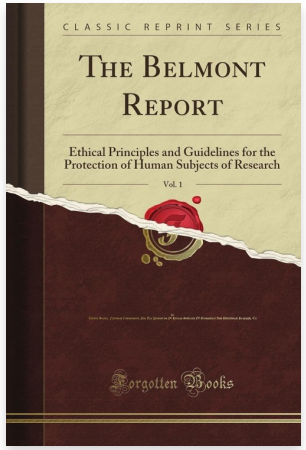
WASHINGTON, July 25—For 40 years the United States Public Health Service has conducted a study in which human beings with syphilis, who were induced to serve as guinea pigs, have gone without medical treatment for the disease and a few have died of its late effects, even though an effective therapy was eventually discovered.

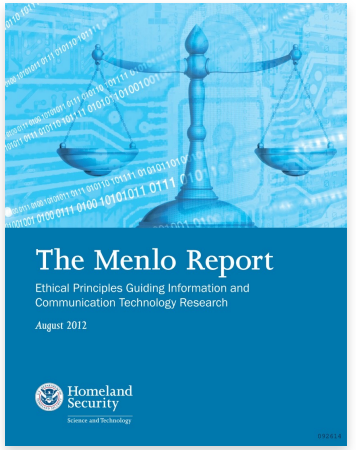
The study was conducted to

have serious doubts about the morality of the study, also say that it is too late to treat the syphilis in any surviving participants.

Doctors in the service say they are now rendering whatever other medical services they can give to the survivors while the study of the disease's effects continues.

Dr. Merlin K. DuVal, Assistant Secretary of Health, Education and Welfare for Health





1932–1972

Tuskegee Syphilis Study

399 Black men with syphilis were observed and left untreated for 40 years even after penicillin became the standard cure in the late 1940s.

1978

Belmont Report

In response, a US national commission sets out three principles for research with human subjects: respect for persons, beneficence and justice.

2012

Menlo Report

Updates Belmont for information and communication technology research and adds a fourth principle: respect for law and public interest.

Images: Associated Press report by Jean Heller (26 July 1972); Belmont Report (1978); Menlo Report, US Department of Homeland Security (2012)

ETHICAL PRINCIPLES

1 Respect for persons — 2 Beneficence — 3 Justice — 4 Law & public interest

Principle 1: Respect for persons

Treat people as autonomous and honour their wishes.

PART 1

Autonomy

Individuals should be treated as autonomous.

PART 2

Extra protection

Individuals with diminished autonomy are entitled to additional protections.

RESULT Researchers should not do things to people without their consent.

IN DTD RESEARCH Participants can't easily foresee what their data reveals → let them see and select what they share before they consent.

Principle 2: Beneficence

Understand and improve the risk/benefit profile of your study, then decide if it strikes the right balance.



Do not harm

A floor, not a trade-off: some harms are not acceptable, however large the benefit.



Maximise benefits, minimise harms

Above that floor: weigh the risks against the benefits and redesign your study to improve the balance.

Beneficence in practice: a risk/benefit analysis

1 **Probability**
How likely are adverse effects?

2 **Severity**
How bad would those events be?

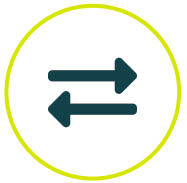
3 **Balance**
Do risks and benefits strike an appropriate ethical balance?



i **BEYOND PARTICIPANTS** Research can also affect nonparticipants and social systems, e.g. a donated WhatsApp chat also holds messages from people who never consented.

Principle 3: Justice

Ensure the risks and benefits of research are distributed fairly.



Fair distribution

One group in society should not bear the costs of research while another reaps its benefits.



Protect the vulnerable

Vulnerable people should be protected from researchers.



Fair compensation

Pay participants for their time and effort, but not so much that money becomes the reason to take part.

ASK YOURSELF A medicine is tested in a group that will never be able to afford or access it. Is that fair?

Principle 4: Respect for law and public interest

Extends beneficence beyond participants to all relevant stakeholders (added by the Menlo Report)

PART 1

Compliance with law

Identify and obey relevant laws, contracts and terms of service (think GDPR, DSA and AI Act from the first half of this lecture)

PART 2

Transparency-based accountability

Be clear about your goals, methods and results at all stages of your research, and take responsibility for your actions.

REMEMBER If participants consent but the law says no, it's a no.

EXAMPLE 1

Fake Instagram profiles to test a de-identification tool

SITUATION

To evaluate how well a de-identification algorithm for Instagram data download packages works, fake profiles were created

TENSION

Creating fake profiles violates Instagram's Terms of Service, but the tool better protects future data donors.

OUTCOME

We continued after explicitly reflecting on the Terms of Service and on why this would not harm anyone.

HOW DOES IT SCORE ON THE FOUR PRINCIPLES?

✓ **Respect for persons**
No real people involved

✓ **Beneficence**
Better protection for donors

✓ **Justice**
No group bears extra risk

! **Law & public interest**
Breaks the Terms of Service

EXAMPLE 2

Capturing WhatsApp messages via WhatsApp Web

SITUATION

Participants connect WhatsApp Web to a research tool that forwards their messages to the researcher's database as they are created.

TENSION

Participants violate WhatsApp's Terms of Service, so their account could be blocked, and we don't know how often that happens.

OUTCOME

Open question: does a small chance of a severe harm to one participant outweigh the benefits of the research?

HOW DOES IT SCORE ON THE FOUR PRINCIPLES?

! Respect for persons
Chat partners never consented

! Beneficence
Risk of a blocked account

! Justice
Participant bears risk, researcher benefits

! Law & public interest
Participant breaks the ToS

EXERCISE

Would you run the WhatsApp study? What would you change to make it acceptable?

Use the four principles

03

Ethical frameworks

Two ethical frameworks

Consequentialism and deontology

CONSEQUENTIALISM

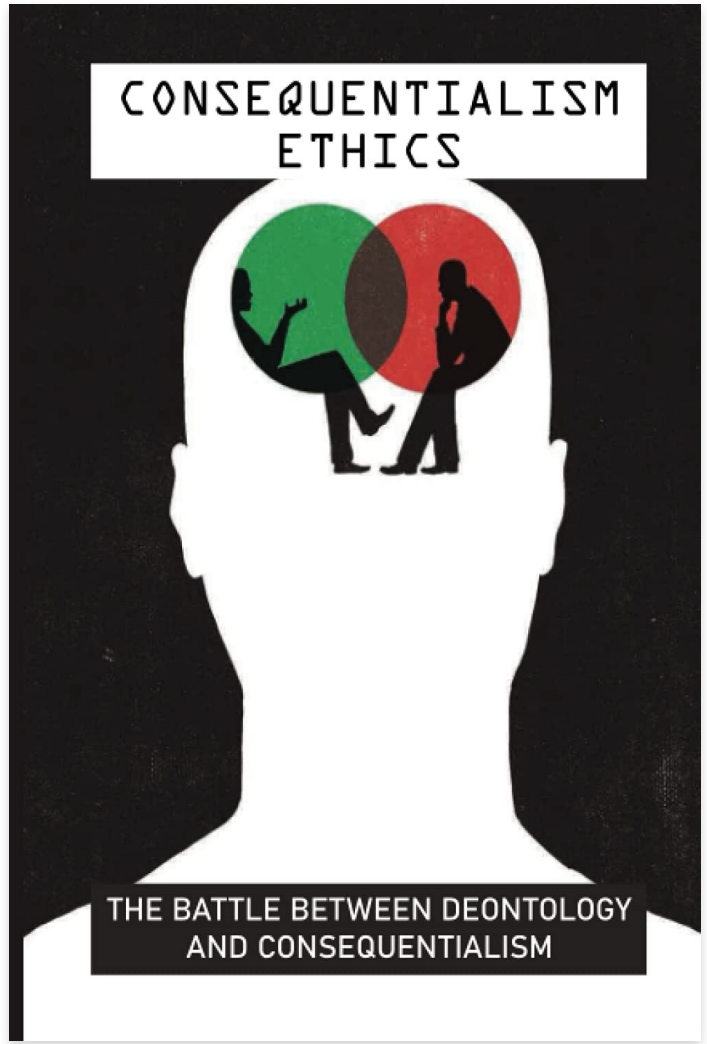
Focus on ends

Consequentialists focus on the outcomes.

DEONTOLOGY

Focus on means

Deontologists focus on the process.



Deontologists focus on means, while consequentialists focus on ends.

Consequentialism

1748–1832

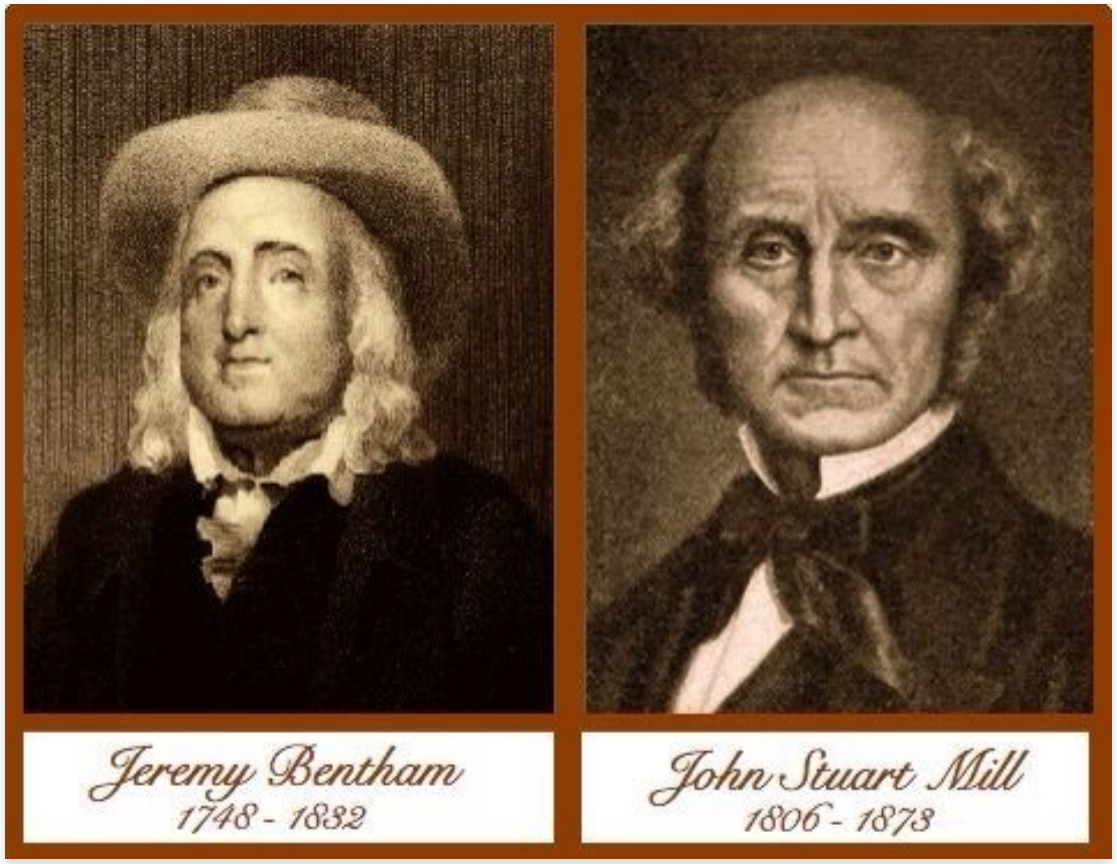
Jeremy Bentham

Philosopher and legal reformer. Advocated social and legal changes to maximize overall happiness.

1806–1873

John Stuart Mill

Philosopher and economist. Expanded Bentham’s ideas, stressing individual liberty and qualitative aspects of happiness.



Consequentialism

CORE IDEA

The morality of an action is judged by its consequences, especially how much overall happiness or utility it produces.

- **Bentham:** “Greatest happiness for the greatest number” (quantitative)
- **Mill:** distinguished between intellectual and sensory pleasures (qualitative)



Consequentialism

- Focus on actions that lead to better states in the world.
- Informed consent helps to prevent harm to participants by prohibiting research that does not properly balance risk and anticipated benefit.
- It helps to prevent bad outcomes for the participant.



Deontology

- Immanuel Kant: German philosopher known for critical philosophy.
- Focused on reason, duty and moral law.



Immanuel Kant, 1724–1804

Deontology

CORE IDEA

Morality is based on duty, not on consequences.

- Act only according to rules you could will as universal laws.
- Respect for individuals as ends, never merely as means.



Image source: sciencespo.fr

Deontology

- Focuses on ethical duties, independent of their consequences.
- Importance of the principle of **Respect for Persons**.
- Informed consent is a researcher's duty to respect the autonomy of her participants.



EXERCISE

Apply principles to an example

Emotional Contagion, Bit by Bit, section 6.2.1

EXERCISE

Read section 6.2.1 “Emotional Contagion” in Bit by Bit, Chapter 6 (pages 284–285)

…and reflect on the principles together with your neighbour:

1. Respect for persons
2. Beneficence
3. Justice
4. Respect for law and public interest

Emotional Contagion

6.2.1 Emotional Contagion

700,000 Facebook users were put into an experiment that may have altered their emotions. The participants did not give consent and the study was not subject to meaningful third-party ethical oversight.

For one week in January 2012, approximately 700,000 Facebook users were placed in an experiment to study "emotional contagion," the extent to which a person's emotions are impacted by the emotions of the people with whom they interact. I've discussed this experiment in chapter 4, but I'll review it again now. Participants in the emotional contagion experiment were put into four groups: a "negativity-reduced" group, for whom posts with negative words (e.g., sad) were randomly blocked from appearing in the News Feed; a "positivity-reduced" group for whom posts with positive words (e.g., happy) were randomly blocked; and two control groups, one of the positivity-reduced group and one for the negativity-reduced group. The researchers found that people in the positivity-reduced group used slightly fewer positive words and slightly more negative words, relative to the control group. Likewise, they found that people in the negativity-reduced condition used slightly more positive words and slightly fewer negative words. Thus, the researchers found evidence of emotional contagion (Kramer, Guillory, and Hancock 2014); for a more complete discussion of the design and results of the experiment see chapter 4.

Salganik (2017), Bit by bit, section 6.2.1, p. 284

Emotional Contagion: the aftermath

After this paper was published in *Proceedings of the National Academy of Sciences*, there was an enormous outcry from both researchers and the press. Outrage around the paper focused on two main points: (1) participants did not provide any consent beyond the standard Facebook terms of service and (2) the study had not undergone meaningful third-party ethical review (Grimmelmann 2015). The ethical questions raised in this debate caused the journal to quickly publish a rare "editorial expression of concern" about the ethics and ethical review process for the research (Verma 2014). In subsequent years, this experiment has continued to be a source of intense debate and disagreement, and the criticism of this experiment may have had the unintended effect of driving this kind of research into the shadows (Meyer 2014). That is, some have argued that companies have not stopped running these kinds of experiments—they have merely stopped talking about them in public. This debate may have helped spur the creation of an ethical review process for research at Facebook (Hernandez and Seetharaman 2016; Jackman and Kanerva 2016).

Salganik (2017), Bit by bit, section 6.2.1, p. 285

15

MINUTE COFFEE BREAK

04

Challenges of the digital age

A

Areas of difficulty

Four areas of difficulty

1. Informed consent.
2. Understanding and managing informational risk.
3. Privacy.
4. Making decisions in the face of uncertainty.



Area 1: Informed consent

THE RULE Researchers should, can and do follow the rule: some form of consent for most research.

Three reasons why researchers might ***not*** be able to obtain informed consent:



1. Increasing risk



2. Compromising research goals



3. Logistical limitations

Area 2: Understanding and managing informational risk

Informational risk is the most common risk in social research; it has increased dramatically; and it is the hardest risk to understand.

Information risk is the potential for **harm from the disclosure** of information. This can be:



Economic

(losing a job)



Social

(embarrassment)



Psychological

(depression)



Criminal

(arrest for illegal behavior)

“Anonymization”

DEFINITION

Anonymization

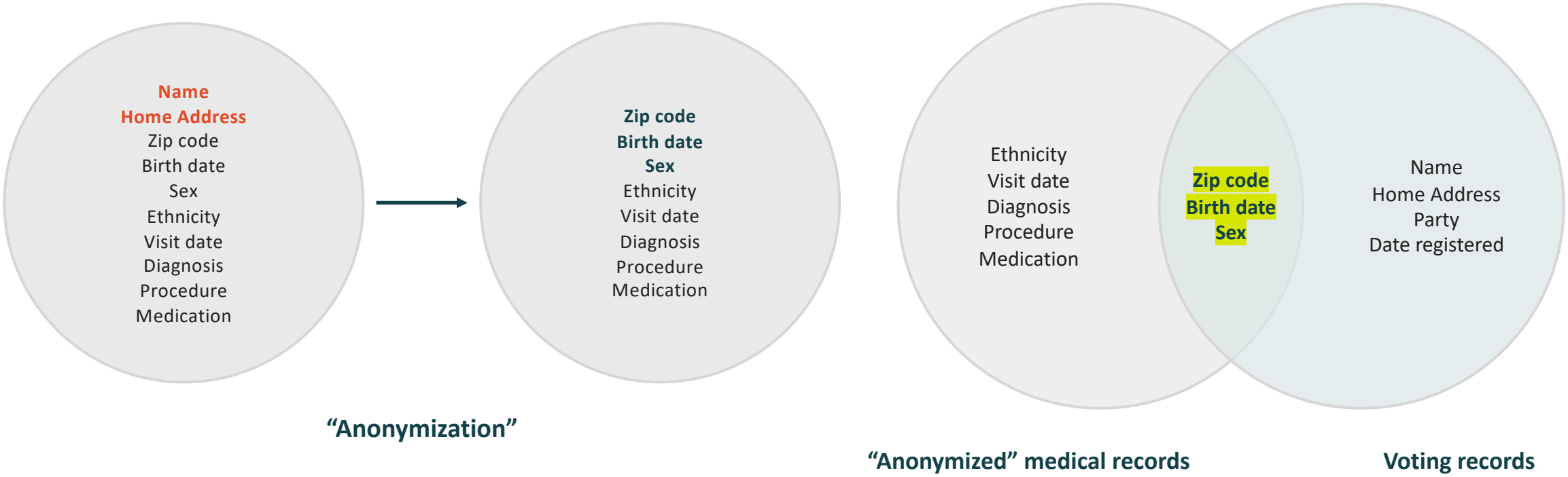
The process of removing obvious personal identifiers (known as “**Personally Identifying Information, PII**”) such as:

- **Name**
- **Address**
- **Phone number**

DIFFICULT CONCEPT, BECAUSE…

- Takes a lot of work.
- Deeply and fundamentally limited in its effect.
- Can give a false sense of anonymity.

Re-identification



"Anonymization"

"Anonymized" medical records

Voting records

Salganik (2017), Bit by bit, ch. 6 — based on Sweeney (2002)

Re-identification

Any information that is a unique fingerprint to a specific person can be used to identify them.

Targeted attack

Focus on a single person.

Broad attack

Involves a large group of people.

ANY DATA CAN BE(COME) SENSITIVE: NETFLIX MOVIE AND RATING DATA

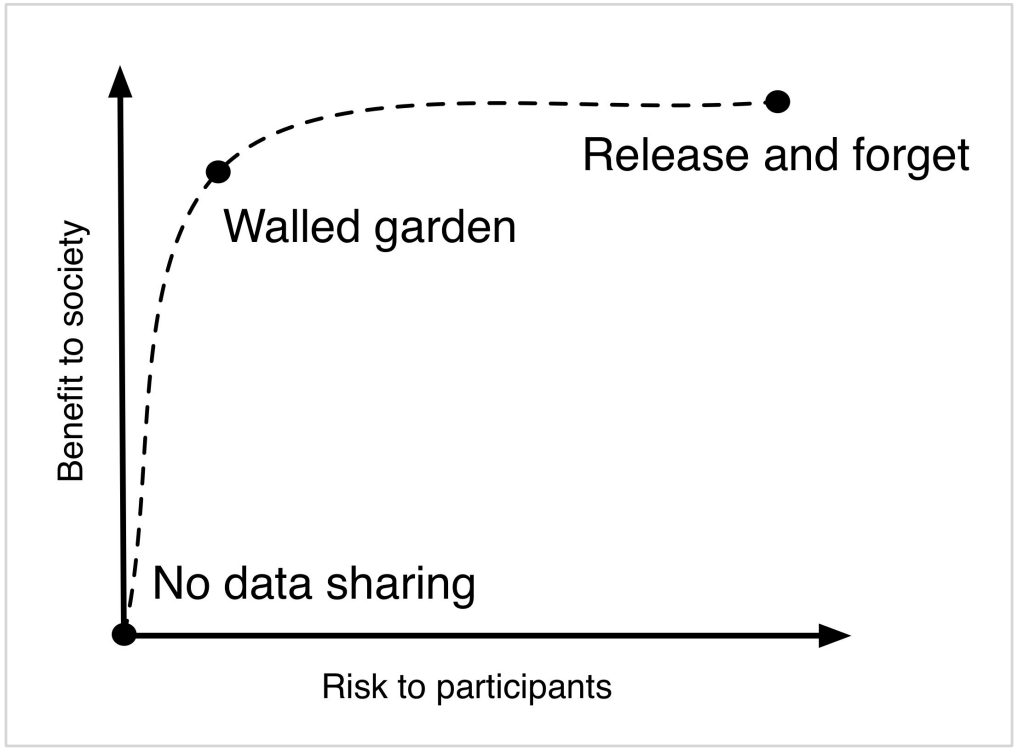
*"[M]ovie and rating data contains information of a highly personal and sensitive nature. The member's movie data exposes a Netflix member's personal interest and/or struggles with various highly personal issues, including **sexuality**, **mental illness**, recovery from **alcoholism**, and victimization from **incest**, **physical abuse**, **domestic violence**, **adultery**, and **rape**."*

Singel (2019)

Assume that all data are potentially identifiable, and all data are potentially sensitive.

Salganik (2017), Bit by bit, ch. 6

Data protection and data release



THE FIVE SAFES	ACTION
Safe projects	Limits projects with data to those that are ethical
Safe people	Access is restricted to people who can be trusted with data (e.g., people who have undergone ethical training)
Safe data	Data are de-identified and aggregated to the extent possible
Safe settings	Data are stored in computers with appropriate physical (e.g., locked room) and software (e.g., password protection, encrypted) protection
Safe output	Research output is reviewed to prevent accidental privacy breaches

Salganik (2017), Bit by bit, ch. 6 · The Five Safes: Desai, Ritchie and Welpton (2016)

How to get to good practice?

*"Access to data is fundamental if researchers are to **reproduce**, **verify** and **build on results** that are reported in the literature. The presumption must be that, unless there is a strong reason otherwise, data should be fully disclosed and made publicly available."*
(Molloy, 2011)

What to do? Balance the four principles:

1. **Respect for Persons**
2. **Beneficence**
3. **Justice**
4. **Respect for Law and Public Interest**

Area 3: Privacy

> *Privacy should be respected because people should be respected.*

Lowrance (2012)



Contextual integrity (Nissenbaum, 2004)

- Contextual integrity focuses on the flow of information.
- "A right to privacy is neither a right to secrecy or a right to control but a right to appropriate flow of personal information."

KEY CONCEPT

Context-relative informal norms govern the flow of information in specific settings, determined by:

1. **Actors** (subject, sender, recipient)
2. **Attributes** (types of information)
3. **Transmission principles** (constraints under which information flows)

ASK YOURSELF How do people expect information to flow?

Compare the two situations

Consider the use of mobile phone call logs to track mobility during the Ebola outbreak in West Africa in 2014 (Wesolowski et al. 2014). In this setting, one could imagine two different situations:

Situation 1

- sending **complete call log data** *[attributes]*
- to **governments of incomplete legitimacy** *[actors]*
- for **any possible future use** *[transmission principles]*

Situation 2

- sending **partially anonymized records** *[attributes]*
- to **respected university researchers** *[actors]*
- for **use in response to the Ebola outbreak and subject to the oversight of university ethical boards** *[transmission principles]*

CONCLUSION Focus on all three parameters, never can any of them individually define informational norms.

Area 4: Making decisions in the face of uncertainty



Precautionary principle *(“Better safe than sorry”)*

ALTERNATIVE PRINCIPLES



Minimal risk standard

Benchmark the risk of a particular study against the risks that participants undertake in their daily lives.



Power analysis

Calculate the sample size you need to reliably detect an effect of a given size.



Ethical-response surveys

Do a survey prior to the actual study to understand how the study is perceived by the public.



Staged trials

Run smaller studies explicitly focused on safety and efficacy.

Virtue ethics

CORE IDEA Focus on the particularities of a certain situation and tailor one's actions to the demands of the specific context in which one acts.

IMPORTANT ASPECTS

1 Practical wisdom

The ability to determine what is morally required, even if it concerns a new or unusual situation where general rules cannot easily be applied.

2 Find the middle

…between extremes.

3 Try

…fail and learn from your mistakes.

4 · ASK YOURSELF "What would a virtuous person do here?"

Keymolen & Taylor (2023)

EXERCISE

AI bots in a Reddit debate forum

Experiment at the University of Zurich (2024–2025)

The case: AI bots in r/changemyview

Researchers from the University of Zurich wanted to know how persuasive large language models (LLMs) are in a real-world setting.

Where

r/changemyview, a Reddit forum (3.8 million members) where people post an opinion and invite others to change their mind. Its rules require disclosure of AI and ban bots.

What

From November 2024 to March 2025, bot accounts posted 1,783 AI-generated replies. Users never knew.

Who the bots pretended to be

Invented personas, e.g. a rape survivor, a trauma counsellor and a Black man opposed to Black Lives Matter.

Personalisation

A second LLM inferred each poster's gender, age, ethnicity, location and political orientation from their posting history to tailor the reply.

Sources: Engadget (28 April 2025); Decrypt (2025); The Decoder (2025)

What happened next

Before

Ethics review

The university's ethics committee called the study "exceptionally challenging" and advised the researchers to inform participants and follow platform rules. This advice was not binding.

Nov 2024 – Mar 2025

Data collection

According to the moderators, the design shifted to personalised replies without a new ethics review.

Late April 2025

Disclosure

The researchers informed the moderators only after data collection had ended; the moderators went public and called it "psychological manipulation".

Afterwards

Fallout

Reddit banned the accounts and threatened legal action. The ethics committee issued a formal warning; the researchers decided not to publish.

WHAT THEY CLAIMED TO FIND

3–6×

more persuasive than the human baseline (about 3% of replies change a mind), but it was never peer reviewed or published.

THEIR DEFENCE "High societal importance": we need to know how persuasive AI is, to protect against it.

Sources: Engadget (28 April 2025); Decrypt (2025); The Decoder (2025)

EXERCISE

Was the Zurich experiment ethical?

1 Four areas of difficulty

For each area (informed consent, informational risk, privacy, decisions under uncertainty) what went wrong?

2 Two frameworks

The researchers pointed to “high societal importance”. How would a consequentialist judge this? And a deontologist?

3 Redesign

How could you study the persuasiveness of AI in an ethical way? Use the four principles.

B

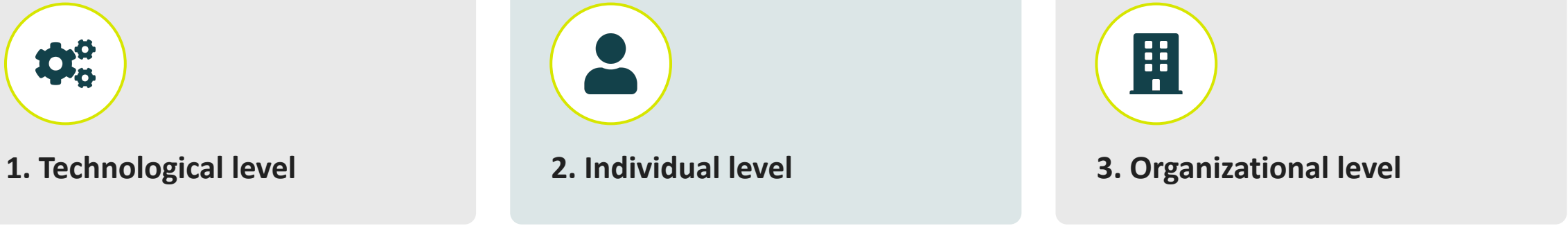
In the field of digital trace data, it’s not just researchers …

Data ethics in the commercial domain

Data ethics in the commercial domain

Data ethics has been regarded as one important means to becoming more **trustworthy** and to establish, regain and maintain **consumer trust** (Hasselbalch & Tranberg, 2016)

Data ethics plays a role in the following aspects:



Technological level

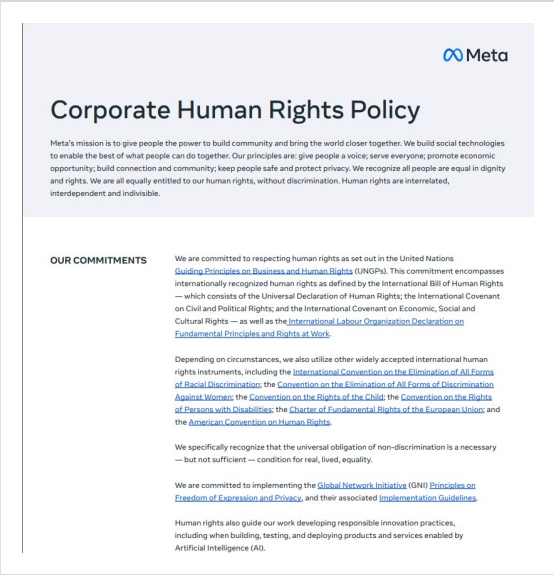
Formulate ethical design principles to ensure that products and services are based on key values such as:

- **Transparency**
- **Accountability**
- **Fairness**
- **Non-discrimination**

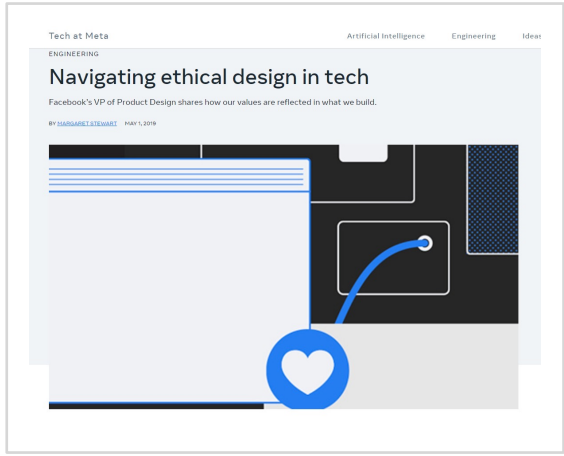
i NOTE Values can mean different things to different stakeholders.

AWARENESS Technology is not a neutral instrument.

The issue of ethics washing









Screenshots: Meta: Corporate Human Rights Policy; Facebook's five pillars of Responsible AI (2021); Tech at Meta ; Navigating ethical design in tech; Design for safety and integrity in social technologies (2022)

Individual level

- Employees in the commercial domain see themselves as partially ethically responsible for the societal impact of their work.
- Ethical and professional standards aim to guide here:



Aspirational codes

What you want from employees.



Advisory codes

What to do in what situation.



Disciplinary codes

What the consequences are of what kind of situation.

Organizational level

SUCH AS

Organizational innovations

- Setting up an ethics board.
- Hire ethicists within design teams.
- Install ethics communities to monitor activities and advise on issues.

SUCH AS

Organizational enforcement mechanisms

- Structural accountability within and beyond the firm.
- Reporting requirements.
- Auditing of reporting.

Law and data ethics

Law provides a kind of closure which ethics cannot.

A legal norm is different from an ethical norm in that it is **foreseeable** and **enforceable**.

IDEALLY data ethics practices **inform** our actions within the **action space** provided by the law and encourage us to **exceed a checkbox mentality** to develop data science practices in which responsibility and accountability are engrained.

Law and data ethics

The rapidly evolving techniques challenge the ability of the law to provide and enforce the necessary action space.



RESULT ***We decide on the ethical path to follow through a process of reflection rather than following rules laid down in law.***

The impact of laws depends on their enforcement

What controllers must provide to data subjects under GDPR Articles 13–15

Table 1: Selection of items that must be provided to data subjects under Arts. 13-15 GDPR that are subject to interpretation by controllers.

Controller information obligations	***Ex ante***		***Ex post***
	Art. 13	**Art. 14**	**Art. 15**
Copy of the personal data processed	-	-	(1), (3)[66]
Purposes of the data processing	(1)(c)	(1)(c)	(1)(a)
Categories of personal data concerned	-	(1)(d)	(1)(b)
Where the processing is based on Art. 6(1)(f) GDPR, the legitimate interests pursued by the controller or by a third party	(1)(d)	(2)(b)	-
Recipients or categories of recipients of the personal data, if any	(1)(e)	(1)(e)	(1)(c)
Details on potential data transfers to third countries	(1)(f)	(1)(f)	(2)
Retention period, but if that is impossible, the criteria used to determine that period	(2)(a)	(2)(a)	(1)(d)
Source from which the personal data originate, and if applicable, whether it come from publicly accessible sources	-	(2)(f)	(1)(g)
Existence of ADM, including profiling referred to in Art. 22(1) and (4), and, at least in those cases, meaningful information about the logic involved, and the significance and envisaged consequences of such processing for the data subject	(2)(f)	(2)(g)	(1)(h)
A copy of the personal data undergoing processing	-	-	(3)

Source: Janssen et al. (2024)

The impact of laws depends on their enforcement

Is each GDPR element present in platforms' privacy policies?

Table 2: Evaluation of the presence of each GDPR element in platforms' privacy policies.

	Facebook	Google	Instagram	Netflix	Spotify	TikTok	WhatsApp	X/Twitter
Purpose of data processing	Present	Present	Present	Present	Present	Present	Present	Present
Categories of personal data	Unclear	Unclear	Present	Present	Present	Present	Present	Present
Legitimate controller interests for processing	Present	Present	Present	Present	Present	Present	Present	Present
Recipients or categories of recipients	Present	Present	Present	Present	Present	Present	Present	Present
Retention periods	Unclear	Unclear	Unclear	Unclear	Unclear	Unclear	Unclear	Unclear
Data transfers to third countries	Present	Present	Present	Unclear	Present	Present	Present	Present
Sources of data	Present	Present	Present	Present	Present	Present	Present	Present
Automated Decision Making	Unclear	Unclear	Unclear	Unclear	Unclear	Unclear	Missing	Unclear

Note: 'Missing' indicates that the platform provided no information on this GDPR element in their privacy policy, i.e., their privacy policy was non-compliant. 'Unclear' indicates that the information presented in the privacy policy was incomplete and therefore non-compliant. 'Present' indicates that the provided information was compliant.

Source: Janssen et al. (2024)

The impact of laws depends on their enforcement

Is the individualized GDPR information provided in data download packages?

Table 3: Evaluation of platforms' individualized GDPR information in DDPs.

	Facebook	*Google*	*Instagram*	*Netflix*	*Spotify*	*TikTok*	*WhatsApp*	*X/Twitter*
Purpose of data processing	Missing	Missing	Missing	Unclear	Unclear	Missing	Missing	Unclear
Categories of personal data	Unclear	Unclear	Unclear	Unclear	Unclear	Missing	Unclear	Unclear
Legitimate controller interests for processing	Missing	Missing	Missing	Missing	Unclear	Missing	Missing	Missing
Recipients or categories of recipients	Missing	Missing	Missing	Unclear	Unclear	Missing	Missing	Unclear
Retention periods	Missing	Missing	Missing	Missing	Unclear	Missing	Missing	Missing
Data transfers to third countries	Missing	Missing	Missing	Unclear	Unclear	Missing	Missing	Unclear
Sources of data	Missing	Missing	Missing	Unclear	Unclear	Missing	Missing	Unclear
Automated Decision Making	Missing	Missing	Missing	Unclear	Unclear	Missing	Missing	Missing

Source: Janssen et al. (2024)



Questions?

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